

The Bihar Tax on Entry of Goods into Local Area Rules, 1993

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[Rule THE-BIHAR-TAX-ON-ENTRY-OF-GOODS-INTO-LOCAL-AREA-RULES-1993 of 1993](#)

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[The Bihar Tax on Entry of Goods into Local Area Rules, 1993](#)

[Published vide Notification No. S.O. 181, dated 17.5.1993](#)

[S.O. 181, dated 17.5.1993. - In exercise of the powers conferred by Section 9 of the Bihar Tax on Entry of Goods into Local Areas for Consumption, Use or Sale Therein Act, 1993, dispensing with the condition of previous publication under the proviso to sub-section \(1\) of the said section the Governor of Bihar is pleased to make the following "Bihar Tax on Entry of Goods into Local Areas Rules, 1993."](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

[These rules may be called the Bihar Tax on Entry of Goods into Local Areas Rules, 1993.](#)

[\(2\)](#)

These shall come into force with effect from the date of issue.

2.

Definitions.

- In these rules unless there is anything repugnant to the subject or context-

(1)

'Circle' means an unit of Commercial Taxes administration as specified in the Government Notification issued in this behalf from time to time under the Sales Tax Law of the State within the local limits of which the dealer or the person who is liable to pay tax under the Act is registered or brings or causes to be brought such of.

(2)

'Commercial Taxes Officer, Assistant Commissioner, Deputy Commissioner, Joint Commissioner of Commercial Taxes' means and denotes a Commercial Taxes Officer, Assistant Commissioner of Commercial Taxes, Deputy Commissioner of Commercial Taxes and Joint Commissioner of Commercial Taxes appointed under sub-section (1) of Section 9 of Part I of the Bihar Finance Act, 1981 (Bihar Act 5 of 1981).

(3)

'Form' means a Form prescribed under these rules.

(4)

'Government' means the State Government of Bihar.

(5)

'Government Treasury' means in relation to a dealer or person the Treasury or Sub-Treasury, as the case may be, of the District or Subdivision in which the specified goods are brought for consumption, use or sale.

(6)

'Month' means a calendar month.

(7)

'Officer In-charge of a circle' means a Commercial Taxes Officer or an Assistant Commissioner of Commercial Taxes or a Deputy Commissioner of Commercial Taxes, incharge of a circle.

(8)

The 'Act' means the Bihar Tax on Entry of Goods into Local Areas for Consumption, Use or Sale Therein Act, 1993.

(9)

'Prescribed Authority' means authority prescribed under the Act and these rules.

(10)

'Place of business' means and includes, in relation to a dealer, any place where the dealer either usually or for the time being produces, processes, manufactures, sells or purchases or stocks for consumption, use or sale any scheduled goods or keeps accounts relating to them.

(11)

'Quarter' means the quarter ending on the 30th June, 30th September, 31st December and 31st of March.

(12)

'Tax' means the tax levied under the Act.

(13)

'Tribunal' means the Tribunal constituted under Section 8 of Part I of the Bihar Finance Act, 1981, (Bihar Act 5 of 1981).

(14)

'Year' means Financial Year.

(15)

Words and expressions used but not defined in these rules shall have the meanings assigned to them in the Act and Sales Tax Rules, 1983.

3.

Registration.

(1)

Every dealer who is liable to pay tax under the Act, shall make an application for registration separately in respect of every place of business before the Deputy Commissioner/Commercial Taxes Officer incharge of the Circle within seven days of becoming liable to pay tax under the Act.

(2)

(a)

Such application shall be in Form ET-I and shall be signed and verified in the manner prescribed in the Form, by the proprietor if the dealer is an individual, the authorised partner, if the dealer is a partnership firm, by the Karta, if the dealer is a Hindu Undivided Family and in case of a Company or a Corporation constituted under any law by managing director or managing agent or principal Executive Officer thereof or in case of Society, Club or Association of persons or a Department of the Government or Local Authority by the Principal or Chief Executive Officer thereof.

(b)

The applicant shall also attach two passport size photographs of the proprietor, if the dealer is individual, or the authorised partner if the dealer in partnership firm and of Karta if the dealer is an Hindu Undivided family or firm.

(3)

On receipt of an application for registration the Officer incharge of the Circle after verifying or causing to be verified the particulars furnished by the dealer, grant him a registration certificate in Form ET-II within a period ordinarily not exceeding thirty days from the date of the receipt of the said application:

Provided that in order to ensure proper payment of tax Officer incharge of the Circle before granting the certificate of registration may require a dealer to furnish such security and in such manner as he may consider desirable. But such security shall not be more than the amount of tax which may be estimated as payable for a year.

(4)

The security required to be furnished under sub-rule (3) may be in either of the following manners:-

(i)

Cash deposit in the Government Treasury; or

(ii)

Post Office Savings Bank Account or Government Securities pledged to the Officer in-charge of the Circle concerned; or

(iii)

Bank guarantee from a Bank approved in this behalf by the Officer incharge agreeing to pay to the Government on demand the amount of security fixed by the Officer incharge; or

(iv)

By furnishing two securities, acceptable to the Officer incharge, by executing a security bond for such amount in Form ET-XII.

(5)

The said authority shall assign a number to each registration certificate which shall be prefixed by appropriate alphabetical symbol of the concerned circle specified in his behalf in the Notification issued under the Sales Tax law of the State and shall be suffixed by the letters "ET".

(6)

The relevant rules of the Bihar Sales Tax Rules in force at the appropriate time shall mutatis mutandis apply in all matters relating to amendment necessitated by any change in the ownership or constitution of business, change in the name and style of business, place of business or any other material change having relevance for the liability to pay tax under this Act and loss or defacement, renewal and cancellation of the registration certificate granted under sub-rule (3).

4.

Returns and payment of tax.

(1)

Every registered dealer or any other person liable to pay tax under sub-section (2) of Section 3 of the Act shall furnish an abstract of monthly import of goods in Form ET-III, a true and complete return for each quarter in Form ET-IV and also an annual return for each year in Form ET-V in respect of import of all scheduled goods and tax payable thereon in accordance with the provisions of the Bihar Finance Act, 1981 (Bihar Act 5, 1981) and in the manner as laid down in the rules made thereunder in this behalf.

(2)

(a)

Every registered dealer or any other person liable to pay tax under the Act shall pay the amount of tax or penalty or both into Government Treasury by challan in Form ET-VI:

Provided that if the Officer incharge of the Circle is satisfied that a dealer has been maintaining and is maintaining adequate funds in his Bank account he may permit him to pay amount of tax including penalty, if any, where such

amount exceeds Rs. 500/- through a crossed cheque or crossed Bank draft on a Bank functioning at the place where the Government Treasury is situated. Such permission may, at any time be revoked without assigning any reason: Provided further that where the cheque or draft is on a Bank other than a branch of the Reserve Bank of India or the State Bank of India, it shall also include an additional amount equal to the actual collection charges.

(b)

A challan in Form ET-VI, shall be in quadruplicate. The portion of the challan marked 'Original' shall be sent by the Treasury officer to the Officer incharge of the Circle, the portion marked 'Duplicate' shall be retained by the Treasury and the portion marked 'Triplicate' and 'Quadruplicate' shall be returned to the dealer or the payer after being duly receipted. The dealer or the payer shall retain the portion marked 'Quadruplicate' with the abstract of monthly import or annual return as required to be furnished under sub-rule (3).

(3)

(a)

An importer, other than a dealer, who imports a Motor Vehicle into any local area for his own use therein and who is liable to pay tax under sub-section (3) of Section 3 of the Act shall pay entry tax into the Government Treasury on the import value of the Motor Vehicle before making an application for registration of the Motor Vehicle under the Motor Vehicles Act, 1988.

(b)

Such deposit into the Government Treasury shall be made by challan in Form ET-VI. The importer shall furnish the portion marked 'Quadruplicate' to the Officer incharge under whose jurisdiction he resides.

(c)

(i)

He shall file an application in Form ET-VII before the Officer incharge of the Circle, under whose jurisdiction he resides for issuance of a certificate for production before the Registering Officer under the Motor Vehicles Act, 1988 of the district for registration of his Motor Vehicle under the said Act.

(ii)

The Officer incharge after satisfying himself about the details and particulars furnished in the application and evidence of payment enclosed, shall issue a certificate in Form ET-VIII to the importer a copy of which shall also be forwarded to the Registering officer of the Transport Department. Such certificate shall be issued from bound book of 100 (one hundred) forms bearing printed book number and serial number and proper account of such certificate issued shall be maintained in bound register which will contain all relevant particulars furnished in the application by the importer.

(4)

If a dealer claims that any part of his turnover relating to import of Scheduled goods is not liable to tax on the ground that tax was paid at the first point of entry into a local area he shall furnish alongwith his return a statement in Form ET-XI showing separately the total purchases made from each registered dealer who as first importer paid the tax at the time of first entry of the concerned Scheduled goods in a local areas. The statement shall be furnished separately in respect of dealer as registered under different circles and shall be signed by the dealer or his declared manager.

4A.

[Reduction in liability to pay tax under the Bihar Value Added Tax Act, 2005.

[Inserted by S.O. 35, dated 4.5.2006.]

- If any dealer liable to pay tax under the Act by virtue of sale of imported Scheduled goods or sale of goods manufactured out of such imported Scheduled goods incurs any liability to pay tax at the rate specified under Section 14 of the Bihar Value Added Tax Act, 2005, his tax liability under the said Act shall stand reduced to the extent of tax paid under the Act:

Provided that in case of a manufacturer the reduction in tax liability as aforesaid shall only be allowed to industrial units of the small scale sector, the medium scale sector and sick industrial units:

Provided that the said reduction in tax shall be available to manufacturer if the imported Scheduled goods are used or consumed in the manufacture of goods which are sold within the State of Bihar or in the course of inter-State trade and commerce or in the course of export out of the territory of India. In case only a part of goods manufactured out of imported Scheduled goods are sold within the State of Bihar or in the course of inter-State trade and commerce or in the course of export out of the territory of India, the claim for reduction in tax liability shall stand proportionately reduced:

Provided further that such reduction from the tax liability shall be admissible only if the dealer specifically mentions in the

returns, filed under Section 24 of the Bihar Value Added Tax Act, 2005, the Challan Number, date and the amount by which the payment of Entry Tax in relation to which the reduction has been claimed, has been made.]

5.

Maintenance of Accounts and issue of cash-memo, bill, invoice etc.

(1)

Every registered dealer or any other person liable to pay tax under the Act shall keep true and complete detailed accounts of the following:-

(i)

all Scheduled goods imported or received into a local area separately for consumption, use or sale showing description of the goods, quantity and import value, manner of their receipt i.e. number and date of the relevant Railway, Road or Transport receipt, bill of lading and the place from which they have been received.

(ii)

all sales of such Scheduled goods separately in respect of sales made to registered dealers and other persons showing the relevant cash-memo/Bill/Invoice number and date, description of goods, quantity and value and details of relevant despatch papers.

(2)

(i)

Every Commission Agent, broker, dalal, declared agent, auctioneer mercantile agent or any other person by whatever name called, who brings or causes to be brought into the local area any scheduled goods on his own account or on account of his principal or takes delivery of such goods shall keep true and complete detailed accounts and record of the name and address and other particulars of every principal and description, quantity and import value of the goods imported or received or taken delivery of.

(ii)

If the goods are disposed of otherwise than by way of sale, he shall maintain a complete account of the goods and the manner in which that has been disposed of.

(iii)

He shall also keep a copy of the accounts rendered to each principal and shall produce before the Assessing Officer at the time of assessment.

(3)

(i)

Every dealer who makes sales of Scheduled goods shall issue for every sale a cash-memo or a bill or invoice, which shall be, in duplicate, containing the following particulars:-

(a)

Full name and address of the dealer with registration number.

(b)

Serial number and date.

(c)

Name and address of the purchaser.

(d)

Description of the goods.

(e)

Value of the goods.

(f)

Signature of the dealer or his authorised representative.

(ii)

Duplicate copies of such cash memo, bill or invoice shall be retained and produced before the assessing authority for the purpose of assessment. These shall be preserved by the dealer for a period of eight years from the end of the year to which they relate.

6.

Evidence in support of claim for exemption from levy of tax.

(1)

A dealer who claims that any part of his turnover relating to import of scheduled goods is not liable to tax on the ground that tax was paid at the first point of entry into a local area as notified by State Government under sub-section (1) of Section 3 of the Act, he shall substantiate such claim before the assessing officer by producing purchase bill, invoices or cash-memos and other documentary evidences to the satisfaction of the said authority and a true and complete declaration in Form ET-IX received from the selling dealer:

Provided that one form of declaration shall not be valid for more than one transaction of sale unless all the transactions are of the same year and for less than one lac of rupees.

(2)

(a)

Every registered dealer who makes first sale of the Scheduled goods imported from any other local area or outside the State and by virtue of being the first importing dealer has paid tax thereon, shall issue to the purchasing dealer in addition to a cash-memo or bill or invoice, a true and complete declaration in Form ET-IX. The declaration shall be signed by the dealer or his declared manager.

(b)

Any other dealer making second or subsequent sale of such scheduled goods which has suffered the levy of tax and on which entry tax has been paid at the stage of first entry into a local area, shall issue to the purchasing dealer a declaration in Form ET-IX as prescribed in clause (a).

(3)

The dealer shall maintain serially and chronologically a complete account in a register containing all particulars required to be mentioned in the Form and of all the Forms issued.

7.

Evidence in support of claim for exemption from Entry tax on Local Goods.

(1)

Every registered dealer, who either manufactures or produces a scheduled goods in a local area and in course of his business sells these goods to another dealer or importer or any other person in the same local area, shall issue a cash-memo or bill or invoice specifically certifying therein that the goods being sold are locally manufactured or produced goods and as such no entry tax is payable thereon.

(2)

Every registered dealer or importer or any other person shall preserve the cash memo or bill or invoice containing the certificate as provided in sub-rule (1) and shall produce before the prescribed authority on demand.

(3)

Every registered dealer or importer shall file a copy of the relevant cash-memo, bill or invoice containing the required certificate alongwith a statement of all such cash-memo etc. before the assessing authority for claiming exemption from tax on such goods at the time of assessment.

8.

Manner for claiming reduction in the liability to pay sales tax.

(1)

A claim for reduction in the liability to pay sales tax shall be made by registered dealer who is entitled to claim such reduction under sub-section (1) of Section 4 or in accordance with the notification issued under sub-section (1) of Section 3 of the Act.

(2)

The claim shall be valid only when the amount of entry tax has been paid on the concerned goods.

(3)

The burden of proving the claim for reduction of sales tax shall be on the dealer.

(4)

Such claim shall be made by furnishing a statement in triplicate in Form ET-X which shall be filed alongwith the quarterly return.

(5)

On receipt of the claim in Form ET-X, the authority prescribed for assessment of tax shall scrutinise the same before the date for filing of the next quarterly return and shall satisfy itself regarding the correctness of the claim. He shall make appropriate endorsement in the assessment record of the dealer and sign the certificate in the said form.

(6)

Two copies of the statement containing certificate of the assessing authority shall be returned to the dealer. He shall furnish one copy of the form to the authority prescribed under the Bihar Finance Act, 1981 to enable it to reduce the dealer's liability at the time of assessment of sales tax payable under the said Act and shall keep other copy as evidence with himself.

9.

Application of certain rules of the Bihar Sales Tax Rules, 1983.

- The relevant rules of the Bihar Sales Tax Rules, 1983 shall mutatis mutandis apply in respect of all such procedural and other matters incidental to carrying out the purposes of the Act for which no provision has been made in these rules.

10.

Punishment for breach of rules.

- Any dealer or importer who contravenes the provisions of these rules shall be punishable with a penalty not exceeding one thousand rupees and where the contravention is continuing one with a penalty not exceeding rupees twenty five for every day of such contravention:

Provided that the prescribed authority before imposing such penalty shall allow the person contravening the rules an opportunity of being heard.

Form - E.T. - I

[See Rule 3(2)(a)]

Application for Registration certificate under Section 5 of the Bihar Tax on Entry of Goods into Local Area for Consumption, Use or Sale Therein Act, 1993

To,

The.....of Commercial Taxes

I.....(Full Name) son of Sri.....(Full Name) hereby apply for the grant of a registration certificate under Section 5 of the Bihar Tax on Entry of Goods into Local Area for Consumption, Use or Sale Therein Act, 1993, and furnish the following particulars for the purpose:-

1. Name of the importing dealer,

2. Permanent address of the importing dealer:-

(a)

Village/Town

(b)

Mohalla/Tola/Road

(c)

Post Office

Pin Code

(d)

Police Station

(e)

District

3. Present address of the importing dealer:-

(a)

Village/Town

(b)

Mohalla/Tola/Road

(c)

Post Office

Pin Code

(d)

Police Station

(e)

District

4. Status of the importing dealer.

(Write here individual, Hindu Undivided family, Firm, Partnership Firm, Corporation, Company, Society, Club, Association, Government Department, etc. as the case may be).

5. Name of the Banks through which transactions are ordinarily carried on by the dealer.....

6. If applicant is dealer under Bihar Finance Act, 1981.

(a)

Registration No.

(b)

Address

(c)

Holding No./Shop No.

(d)

Village/Town

(e)

Mohalla/Tola/Road

(f)

Post Office

(g)

District

(h)

Address of the Business premises.

7. Name of the goods to be imported.

8. Purpose of import

9. Complete list and location of the places where imported goods are to be stored-

Sl. No.

Holding No.

Tola/ Mohalla/ Road Village/Town Post Office/

Police Station/ District.

Name & address of the owner of the premises.

Name of the goods which is generally stored there

Remarks

1

2

3

4

5

6

10. Particulars of all immovable properties owned by the importing dealer or all persons having interest in the imported goods.

Sl. No.

Name of the person having interest in imported goods.

Description of properties owned

Location of properties Khata/ Khasra No./ Tola/

Mohalla/ Post Office/ Police Station/ Distt.

Nature & interest held in property

Estimated value of such interest

1

2

3

4

5

6

11.

Registration Number, if any or any licence held under any other law.

Verification

I do hereby declare that the particulars furnished in this application are correct and complete to the best of my knowledge and belief.

Place

Date

Status

Certificate

I.....(Full Name) certify that the particulars furnished above by the abovenamed applicant is correct & complete and the application has been signed by him in my presence.

Place.....

Date.....

The application shall be signed by the proprietor of the business, if an individual, the Karta, if an Undivided Hindu Family, by the authorised partner in case of a Partnership Firm, by the Managing Director, Managing Agent or Principal Executive Officer, in the case of a Company or Corporation and by the Principal Executive Officer in the case of Society, Club, Association, Department of Government or Local Authority.

If the applicant is an individual or a Undivided Hindu Family or a Partnership Firm, two Photographs of the proprietor or Karta or Authorised Partner shall be furnished.

The Certificate shall be given either by a dealer registered under the Bihar Finance Act, 1981 or by the Block Development Officer/Circle Officer having jurisdiction over the Area or an Advocate.

Such Certificate need not be furnished in the case of a Government Department or a Local Authority.

Acknowledgement

Received from Sri on an application in Form Entry Tax-I for registration Certificate under Section 5 of the Bihar Tax on Entry of Goods into Local Area for Consumption, Use or Sale Therein Act, 1993.

Signature

Designation

Form-E.T. - II

Certificate of registration under Section 5 of the Bihar Tax on Entry of Goods into Local Area for Consumption, Use or Sale Therein Act, 1993

[See Rule 3(2)]

Office of the.....of Commercial Taxes.....Circle Registration No.....Year.....This is to certify, that the importing dealer, whose particulars are being given below and whose photo is affixed above has been registered under Section 5 of the Bihar Tax on Entry of Goods into Local Areas for Consumption, Use or Sale Therein Act, 1993.

2. He is liable to pay tax under the Act with effect from.....20.

3. Name and permanent address of the importing dealer/importer:-

(a)

Name

(b)

Father's Name

(c)

Tola/Mohalla/Road

(d)

Village/Town

(e)

Post Office.....

(f)

Police Station

4. Status of the dealer/importer-

(Write here individual, undivided Hindu Family, Firm, Corporation, Company, Society, Club, Association, Government Department etc. as the case may be.....).

5. Name of the goods to be imported.

6. Particular of the Warehouse or Godown where imported goods is to be stored.....

Sl. No.

Holding No.

Tola/ Mohalla/ Road Village/ Town/ Post Office/

Police Station/ District

Name and address of the owner

Remarks

1

2

3

4

5

7. Purpose of import.

8. Particulars of all other persons, if any having interest in the scheduled goods imported:-

Sl. No.

Name

Father's Name/Husband's name

Permanent Address

Nature of interest

1

2

3

4

5

9. Particulars of immovable property of all persons having interest in the imported goods-

Sl. No.

Name of the interested person

Name of the owned property

Places of property owned Holding no. Village/

Town P.S. District

Estimated Cost and extent of property owned.

1

2

3

4

5

10. Address of Head Office

11. Name of the Banks through which transactions are ordinarily carried on by the dealer.....

Place:

Date:

Stamp:

Signature

Designation

Form-E.T. - III

[See Rule 4(1)]

For The Month of.....

Abstract of import of scheduled cost and entry tax payable thereon by an importing dealer under the Bihar Tax on Entry of Goods into Local Areas for Consumption, Use or Sale Therein Act, 1993

1. Registration No.

2. Name and Postal address of the Importing dealer.

3. Abstract of imports and entry tax payable -

The Bihar Tax on Entry of Goods into Local Area Rules, 1993

Sl. No.

Name of goods

Import value

Rate of Tax

Amount of tax payable

Remarks

1

2

3

4

5

6

4. Total Tax payable. Rs.

5. Amount of Tax paid. Rs.

6. Date and Mode of payment-Cheque No./D.D.No/T.C. No. Date

I declare that the particulars furnished in this abstract are based on true and complete accounts and the amount of tax payable as indicated in column 5 has been paid by Challan No.....Cheque No.....dated.

Place:

Date:

Signature

Status in relation to the importing dealer

Form-E.T. - IV

Quarterly return for the Quarter ending (Return of tax payable by an importing dealer under section 3 of the Bihar Tax on Entry of Goods into Local Areas for Consumption, Use or Sale Therein Act, 1993)

1. Registration No.....

2. Name and Postal Address of the importing dealer.....

3. Style and location of business.....

(Part-A)

1. Total value of goods imported or received or purchased.....

2. Deduct

(a)

Total Value of goods other than Scheduled goods imported, received or purchasedRs.

(b)

Total value of Scheduled goods purchased or received which have been manufactured or produced within the local area.....Rs.

Balance Total Value of scheduled goods liable to tax Rs.

3. Deduct - Total value of Scheduled goods imported from other local areas on which tax has been paid at the first point of entry.

4. Balance - Total value of Scheduled goods on which tax is payable.....

5. Details of tax payable-

On Rs.

@ Tax Rs.

On Rs.

@ Tax Rs.

On Rs.

@ Tax Rs.

On Rs.

@ Tax Rs.

On Rs.

@ Tax Rs.

On Rs.

@ Tax Rs.

Total

.....Rs.....

6. Tax paid vide Cheque/D.D./T.C. No dated.....for (in words) enclosed.

(Part-B) (Details of the Disposal of Scheduled Goods)

Disposal of Scheduled goods received, imported or purchased during the quarter.

(a)

(i)

Consumed

Rs. ?.....

(ii)

Balance in stock

Rs. ?.....

(b)

(i)

Used

Rs. ?.....

(ii)

Balance in stock

Rs. ?.....

(c)

(i)

Sold

Rs. ?.....

(ii)

Balance in stock for sale

Rs. ?.....

(iii)

Amount of sales tax paid on sale as shown in sub-item (i) vide cheque/D.D./T.C. No. dated..... for Rs..... enclosed with the quarterly return filed under the Bihar Finance Act, 1981.

(iv)

Amount of liability of sales tax claimed to be reduced under the Bihar Finance Act, 1981..... Rs.

(Part-C)

1. Total amount of Entry Tax admitted as payable.....Rs.

2. Amount of Entry tax paid Rs.

3. Cheque/D.D./T.C. No.....Dated

Place

Date

Signature of the dealer or his declared manager

Note:-Enclose herewith:-

(1)

Copy of Cheque/D.D./T.C. as mentioned in the return.

(2)

Statement of claim for reduction in the liability to pay sales tax on the scheduled goods under the Bihar Finance Act, 1981 (in Form E.T. - XI)

(3)

A statement in Form ET-X in respect of claim of import of goods on which entry tax is claimed to have been realised at the first point of entry into local area in the State.

Form-E.T. - V

Annual return for the year.....(Return of tax payable by an importing dealer under section 3 of the Bihar Tax on Entry of Goods in Local Areas for Consumption Use or Sale therein Ordinance, 1993)

(See Rule - 4)

1. Registration No.....Symbol.....

2. Name and postal address of the importing dealer.....

3. Style and location of Business.....

(Part-A)

1. Total value of all goods imported or received or purchased Rs.

2. Deduct.

(a)

Total value of goods other than scheduled goods imported, received or purchased Rs.

(b)

Total value of scheduled goods purchased or received which have been manufactured or produced within the local area Rs.

4. Balance : Total value of scheduled goods liable to tax-Rs.

3. Deduct : Total value of scheduled goods imported from other local areas on which tax has been paid at the first point of entry.

4. Balance : Total value of scheduled goods on which tax is payableRs.

5. Details of tax payable :

On Rs.

@ Tax Rs.

On Rs.

@ Tax Rs.

On Rs.

@ Tax Rs.

On Rs.

@ Tax Rs.

On Rs.

@ Tax Rs.

On Rs.

@ Tax Rs.

Total

.....Rs.....

6. Tax paid vide cheque/D.D./T.C. No.....dated for (in words) enclosed.

(Part-B) (Details of the disposal of scheduled goods)

Disposal of scheduled goods received imported or purchased during the year.

(a)

(i)

Consumed Rs.....

(ii)

Balance in stock Rs.....

(b)

(i)

Used Rs.....

(ii)

Balance in stock Rs.....

(c)

(i)

Sold Rs.....

(ii)

Balance in stock for sale Rs.....

(iii)

Amount of sales tax paid on sale as shown in sub-item (i) As vide Cheque/D.D./T.C. No date for Rs enclosed with the annual return filed under the Bihar Finance Act, 1981.

(iv)

Amount of liability if sales tax claimed to be reduced under the Bihar Finance Act, 1981 Rs.....

(Part C)

1. Total amount of Entry Tax admitted as payable Rs.

2. Amount of entry tax paid Rs.

3. Cheque/D.D./T.C. No.

Place

Date

Signature of the dealer or his declared manager.

Note: (1) Enclose herewith a copy of cheque/D.D./T.C. as mentioned in the return.

(2)

Copies of statements of claims filed for reduction in the liability to pay sales tax on the scheduled goods under the Bihar Finance Act, 1981 in Form ET-XI with the quarterly returns.

(3)

Copies of statements in Form ET-X in respect of claims of import of goods on which entry tax is claimed to have been realised at the first point of entry into local area in the State filed with the quarterly returns.

Form-E.T. - VI

Challan under The Bihar Tax on Entry of Goods into Local Areas For Consumption, Use or Sale Therein Act, 1993

[See Rule 4(2)]

Serial No.....

Sadar Treasury No.....of Collection register..... for the monthof.....

Original-to be sent by the Treasury officer to the circle to which the payment relates.

Duplicate-to be retained in the Treasury.

TriPLICATE-to be retained by the dealer (depositor)

Quadruplicate-to be returned to the dealer (depositor) for being forwarded to the appropriate C.T. Authority.

"0042-Goods and passenger Tax-106-Tax on Entry of Goods into Local Areas."

Receipts under the Entry Tax Act -

Miscellaneous Receipts under the Entry Tax Act Challan of amount paid to Treasury/Sub-Treasury Branch of State Bank of India for the year/month.

Name of sub-circle or circle to which the payment relates:

(i)

Registration No.

Advance Tax

(ii)

Name and address of the dealer/(Depositor)

Assessed TaxPenalty under Section 1(Tax under Section 3)

(iii)

Name and style of business

Appeal/revision feeMiscellaneous..... Total

Rupees.....P.O.

.....(In words)

Signature of the dealer or depositor.

For Use in The Treasury

1. Received payment of Rs.of Rs.....p.....(Rupeesp..... only

2. Date of entry.

Treasurer.

Accountant

Treasury Officer Agent or Manager of State Bank

Form-E.T. - VII

[See Rule 4(3)(c)(i)]

Application by an importer of a Motor Vehicle for issuance of a certificate for production before the Registration Officer under the M.V. Act, 1988

1. Name of the importer

(In Block Letter)

2. Full address of the importer residence

Mohalla

Road

Post Office

Police Station

District

3. Permanent Address of the importer

Mohalla

Road

Post Office

Police Station

District

State

4. Type and make of a Motor Vehicle

(State here Bus, Truck, Car etc.)

5. Name & complete address of the seller

Name/style

Mohalla/Road

Post Office

Police Station

District State

6. Details of Invoice/Bill/Cash Memo of the seller

(i)

No.....dated

(ii)

Value Rs.....(in words)

(iii)

Amount of sales tax realised.....

(iv)

Import value (i.e. cost of the Vehicle including excise duties, countervailing duties, Sales Tax, Transportation charges, Freight Charges and all other miscellaneous or incidental charges).

7. (a) Entry Tax payable u/s 3(3) of the Act, Rupees.....

(b)
Amount paid in other State or Union Territory on purchase of the Motor Vehicle Rs.....

(c)
Balance payable after reduction of liability u/s 4(2) of the Act Rs. Paid vide T.C.
No.....date.....of.....Treasury.

(Enclose the portion of the challan duly receipted by Government Treasury marked in 'Quadruplicate').

Declaration

I declare that the above particulars mentioned above are true and correct to the best of my knowledge and belief.

(Full Name)

Signature

N.B. Enclose herewith photo copies of all documents i.e. sellers bill/invoice/cash memo/temporary registration certificate

under the M.V. Act, if any, insurance papers and other relevant documents.

Form-E.T. - VIII

[See Rule 4(3)(c)(ii)]

Certificate to be granted to an importer of Motor Vehicle from other State.

Office of the.....

(Book No.)

.....

(S.No. ?.....)

.....

Certificate No. ?.....

.....

Date the.....

As the importer, Shri in compliance of the requirement of sub-section (3) of Section 3 of the Bihar Tax on Entry of Goods into Local Areas for Consumption, Use or Sale Therein Act, 1993 and consequent upon reduction in his tax liability under sub-section (2) of Section 4 of the said Act has paid a sum of Rs vide T.C. No. ...dated in discharge of his tax liability in respect of import of the said Motor Vehicle under the aforesaid Act, the undersigned has no objection if his Motor Vehicle is registered under the Motor Vehicles Act, 1988.

Place

(Signature and Designation of the

Date

Officer-incharge of the Circle.)

(Seal)

Copy forwarded to the Registering Officer in confirmation.

Signature of the Officer-in-charge of the Circle.

Form-E.T. - IX

Form of declaration under The Bihar Tax on Entry of Goods into Local Areas for Consumption or Sale Therein Rules, 1993

(See Rule 6)

Original

(To be appended to the return by the second or subsequent importer/dealer.)

Counterfoil

(To be retained by the selling importer/dealer)

Duplicate

(To be retained by the purchasing importer/dealer)

Triplicate

(To be returned to the dealer (Depositor) for his own use)

Book No

Sl. No.....

I/We (Name and Style of business) Registration No*do hereby declare that I/We have sold/transferred (name of goods) (Quantity) for Rs (Value) to M/s Registration No through my/our Cash Memo/Bill No.....

2. I/We further declare that the goods were subjected to tax on Entry at the point by import by M/s Full Address.....Registration No.....being an importer/dealer at the first point of entry into a local area in the State.

Place

**Signature and status of the

Date

person signing the declaration

* Give here the Registration No. under Bihar Tax on Entry of Goods into Local Areas for Consumption, Use or Sale Therein Act, 1993 (Bihar Act

No. 16 of 1993

)

**** This declaration form shall be signed by the dealer or his declared manager only.**

Form-E.T. - X

(See rule 8)

Statement of claim for reduction in the liability of Sales Tax payable under The Bihar Finance Act, 1981 consequent upon payment of Entry Tax

(To be furnished in triplicate)

1. Name of the dealer.

2. Style of business and full address.

3. Registration number under the Bihar Tax on Entry of Goods in to Local Areas Act, 1993.

4. Registration No. under the Bihar Finance Act, 1981.

5. Period to which the claim relates.

I (Full name of the dealer) hereby request for reduction in my liability of sales tax payable under the Bihar Finance Act, 1981 in accordance with the provision of sub-section (1) of Section 4 of the Bihar Tax on Entry of Goods into Local Areas for Consumption, Use or Sale Therein Act, 1993 the notification issued under sub-section (1) of Section 3 in respect of the goods on which entry tax has been paid by me/us and which have been sold subsequently and sales tax under the Bihar Finance Act, 1981 has become payable.

Particulars

Sl. No.

Description of Scheduled goods on which entry tax

has been paid by the dealer

Concerned Bill/ Invoice/ Challan No. date in case

of Motor Vehicles mention Chassis No. & Engine No. also.

Quantity

Value

1

2

3

4

5

Amount of entry tax paid (Quote T.C. No. & date)

Period during which sold.

C.M./ Bills./ Invoice no. & date relating to sale.

Sales tax payable.

Sales Tax payable after reduction of liability.

Remarks

6

7

8

9

10

11

I hereby declare and certify that the above particulars are correct and complete to the best of my knowledge and belief.

I further certify that the amount of Entry Tax shown in this statement has been paid by me.

Signature of the dealer or his declared manager.

Certificate

(To be signed by the assessing officer)

Certified that the particulars furnished in this Statement have been scrutinised by me and found to be correct. The amount of entry tax on the goods concerned, to the extent of which the liability of sales tax under the Bihar Finance Act, 1981 has been claimed to be reduced has been duly paid by the dealer.

Signature & designation of the authority

Form-E.T. - XI

Statement of purchase of Scheduled Goods from Registered Dealers on which tax has been realised at first point of entry

[See Rule 4(b)]

1. Name of the purchasing dealer.
2. Name & Style of business & postal address.
3. Registration No.
4. Period to which the statement relates.
5. Name of the circle to which the statement relates.
- Sl. No.

Name & address of the importing dealer from whom the goods were purchased.

Registration no. of the selling dealer.

Name of the scheduled goods.

Value

Selling dealers invoice/ cash Memo No. & date

- 1
- 2
- 3
- 4
- 5
- 6

Total No. of declaration in form ET-IX

Certificate

I hereby declare and certify that the above particulars are correct and complete to the best of my knowledge and belief.

2.

.....Declaration in Form ET-IX covering the above mentioned purchases are enclosed.

Place.....

Date.....

Full name

Signature of the dealer or his declared manager

Form-E.T. - XII

Security Bond Under the Bihar Tax on Entry of Goods into Local Areas Rules, 1993

[See Rule 3(4)(iv)]

Know all men by these presents that I/We.....(Full Name).....(Full address).....am/are held and firmly bound unto the Governor of Bihar exercising the executive power of the Government of the State of Bihar (hereinafter referred to as the Government) which expression in office and assigns including any authority appointed under Section 9 of the Bihar Finance Act, 1981 in the sum of rupees.....(amount in figures and followed by amount in words) (hereinafter referred to as the said sum) to be paid to the Government on demand, for which payment will and truly to be made. I/We bind myself/ourself, my/our heirs, executors, administrators and legal representatives by these presents:-

Whereas the above bounden is required by Section 3 of the Bihar Taxes on Entry of Goods into Local Areas for Consumption, Use or Sale Therein Act, 1993 to pay tax under the said Act and is further required by Section 5 of the said Act to be registered under the said Act and to be in possession of a valid registration certificate thereunder:-

Whereas in course of an inspection of the place of business/godown/ warehouse/vehicle/vessel/goods carrier belonging to under the control or under the charge of above bounden by an authority appointed under Section 9 of the Bihar Finance Act, goods are found for which the above bounden is not in a position to produce satisfactory accounts forthwith.

Whereas the above bounden has been required by theof Commercial Taxes.....Circle to furnish security for the said sum for the purpose of production of proper accounts in respect of goods and securing the proper

payment of the tax payable by him/them under the said Act and indemnifying the Government against all loss, cost or expenses which the Government may, in any way suffer, sustain or pay by reason of the omission, default, or failure of the above bounden or any person or persons acting under or for his/them to produce proper accounts in respect of goods found to pay such tax in the manner and by the time provided by or prescribed under said Act.

Now the condition of the above written bond is such that if the above bounden, his/their heirs, executors, administrators and legal representatives or any person acting under or for him/them pays the full amount of tax payable by him under the said Act on demand by any authority prescribed in rule 18 of the Bihar Sales Tax Rules or rule prescribed under the said Act such demand to be in writing and to be served upon the above bounden, his/their heirs, executors, administrators and legal representative or any person acting under or for him/them in the manner provided by/or prescribed under the said Act and shall also at all times indemnify and save harmless the Government from all and every loss, cost & expense which has been or shall or may at any time or times hereafter during the period in which the above bounden is held liable to pay tax under the said Act because by reason of any act, omission, default, failure or insolvency of the above bounden or any person or persons acting under or for him/them, then this legal obligation shall be.

And it is hereby further agreed that in the events of the death/partition/ disruption/dissolution/winding up or the final cessation of the liability under the Act or the rules prescribed thereunder, the establishment of the intended business to which the certificate of registration, relates and registration of the business so established made under the said Act of the above bounden, this bond shall remain with the authority prescribed in the rule 18 of the Bihar Sales Tax Rules or rules made under Act or any office duly authorised by him in this behalf for twelve years from the occurring of any of the events aforesaid for recovering any tax that may be payable by the above bounden or any loss, cost or expenses, that may have been sustained, incurred or paid by the Government owing to the act, omission, default, failure or insolvency of the above boundens, heirs, executors, administrators, and legal representative and which may not have been discovered until after the above boundens death/partition/disruption/dissolution winding up or final cessation of his/their liability under the said Act or the rules prescribed thereunder (the establishment of the intended business and registration thereof under the said Act).

And it is hereby also agreed that in the event of failure of above bounden to produce proper accounts in respect of the goods found in the place or business/ godown/warehouse/vehicle/vessel goods carrier belonging to/under the control or under the charge of the said bounden within the 15 days from the date of such inspection this bond shall be used by the authority prescribed in rule 18 of Bihar Sales Tax Rules or the rules made under the Act recovering the same:

Provided always that without prejudice to any other right or remedy for recovering the tax, loss or damage as aforesaid it shall be open to the Government to recover the amount payable under this bond as an arrear of land revenue.

In witness whereof the said full name has hereunto set his hand this day of signed and delivered by the above named in the presence of

(1)

.....

(2)

.....

Signature

Status

We hereby declare ourself sureties for the above bounden and guarantee that he/they shall do and perform all that he/they has/have above undertaken to do and perform, and in case of his/their omission, default or failure therein, we hereby bind ourself jointly and severally to forfeit to the Government of Bihar exercising the executive power of the Government of the State of Bihar (hereinafter referred to as the Government) with expression shall, unless excluded by or repugnant to the context include his successors in office and assigns including any authority appointed under Section 9 of the Bihar Finance Act, 1981. The sum of rupees (amount in figure followed by amount in words) (hereinafter referred to as the said sum) in which the above bounden has bound himself or such other lesser sum as shall be deemed to be sufficient by the authority prescribed under rule 18 of the Bihar Sales Tax Rules or rules framed under the said Act to recover any amount of tax payable by the above bounden and remaining unpaid and also to recover any loss, damage, cost or expenses which the Government may sustain, incur or pay by reason of such omission, default or failure.

And we agree that the Government may without prejudice to any other rights or remedies of the Government, recover

the said sum from us, jointly or severally as an arrear of land revenue.

And we also agree that neither of us shall be at liberty to terminate this suretyship except upon giving to the authority prescribed in rule 18 of the Bihar Sales Tax Rules or rule made under the said Act six calendar months prior notice in writing of his intention so to do and our joint and several liability under this bond shall continue in respect of all acts, omissions, defaults, failure and insolvencies on the part of the above bounden until the expiration of the said period of 6 months.

Signature of sureties.

(1)

(2)

Signature

Permanent address

in presence of

(1)

(2)

Signature

Permanent address

This shall be signed by the proprietor of the business if an individual; by the Karta if an undivided Hindu Family; by an authorised partner in the case a firm; by a Managing Director or Principal Executive Officer in the case of a Company or Corporation; by a Principal Executive Officer or Officer-incharge in the case of a Society, club, association, department of Government or local authority, and by any person required to furnish a security under the provision of the Act or rules made thereunder.

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